

DPSH MUN 2026

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JUNIOR UNITED NATIONS HUMAN RIGHTS COUNCIL



DPSH MUN 2026



AGENDA:

“Deliberation on the Responsibilities of States in Safeguarding Prisoners from Cruel, Inhumane, and Degrading Treatment or Punishment, with a Special Emphasis on the Middle East.”

Table of Contents :

- Letter From The Executive Board
- Points To Remember
- ROP
- About The Committee
- Details On The Agenda

LETTER FROM EXECUTIVE BOARD

Dear Delegates!

We are pleased to welcome you to the simulation of the *United Nations Human Rights Council* at *DPSHMUN 2026*. It is an honor to serve as your executive board for the duration of the conference. This Background Guide is designed to give you an insight into the case at hand, so we hope this acts as only a *catalyst* in your research and is not limited to just this guide. Please refer to this carefully!

The agenda for this topic is critically important and presents a complex challenge. As the Executive Board, We are excited about this discussion and the debates that will take place in the committee. Delegates are highly recommended to do an extensive amount of research beyond what is covered in the guide. The guide cannot be cited as proof during the committee proceedings under any circumstances!

At any point during your research, do not hesitate to reach out to the Executive Board for clarifications or help in any other aspects. We look forward to a fruitful discussion and an enriching experience with all of you.

Best regards,

Karthikeya Budha: Co-Chairperson of UNHRC
7396094256

AryaanshSingh: Co-Chairperson of UNHRC
9347912054

IMPORTANT POINTS TO REMEMBER

Procedure: The main role of discussion in any Model United Nations conference is the adherence to a standard set of rules. Keeping this in mind, the UNITED NATIONS HUMAN RIGHTS COUNCIL will be following the UNA-USA format of procedure that most delegates are familiar with. For those of you who are unfamiliar with this format, a detailed explanation of the same has been provided in the section of this Background Guide.

Portfolio research: Every delegate in this committee has been assigned a certain portfolio. Each portfolio has a role of its own. Delegates are required to research the responsibilities and obligations associated with the role that their portfolio holds. Delegates must also research the various foreign policies held by the country that they are representing. A thorough understanding of the country that you are portraying is necessary to accurately represent them during committee proceedings.

Role of the executive board: The Executive Board is tasked with directing and facilitating the committee's debating process. Although the committee as a whole decides how the conversation will go, the delegates are the group's central members and should feel free to voice their opinions on any topic in an unrestrained and open manner. To further challenge participants and encourage a more thorough investigation of the topics at hand, the Executive Board may, at its discretion, ask questions or seek explanations during committee sessions. Please feel free to contact the Executive Board if you have any queries whatsoever!

RULES OF PROCEDURE

The Executive Board shall commence the Committee with roll call. Delegates may respond with either "Present" or "Present and Voting." Delegates who respond "Present and Voting" lose their right to abstention. Those who answer "Present" may change their stance on the second or third day, but those who answer "Present and Voting" may not. During the first session, a delegate must

raise a motion to set the agenda and establish the General Speakers List. The Quorum is set following the Roll Call.

FORMAL DEBATE: GENERAL SPEAKER LIST (GSL).

A motion is raised at the beginning of the Committee to establish the General Speakers List in order to discuss the agenda that has been set. It can be set to either 60, 90, or 120 seconds but can be changed later. Once a motion to establish the General Speakers List is passed, the Executive Board will be looking for speakers for said list. A delegate can be added to the list by raising their placard or sending a note to the dais. A delegate may only appear on the list once at a time. The General Speakers List is inexhaustible. If the list is exhausted and no other delegates wish to be added, the committee immediately moves into voting procedure on any draft resolutions that have been introduced. If there is any time remaining once a delegate concludes their speech, they must yield the remaining time.

Remaining time may be yielded to the following:

1. **Yield to the Executive Board** (Time is absorbed or used at discretion of the EB)
2. **Yield to Points of Information** (To entertain questions from other delegates)
3. **Yield to another delegate** (Allocates time for another delegate to speak)

INFORMAL DEBATE: MODERATED CAUCUS

A delegate may raise a motion while the General Speakers List is open to temporarily suspend formal debate and enter a moderated caucus, which is a less formal debate format to discuss a specific subset or subtopic under the agenda. A motion to enter a moderated caucus must include a topic, total

duration, and individual speaker time. A delegate may not yield their remaining time when in a moderated caucus.

INFORMAL DEBATE: UNMODERATED CAUCUS

A delegate may raise a motion while the General Speakers List is open to temporarily suspend formal debate and enter an unmoderated caucus, which is the least formal format of debate. Delegates are not moderated by the Executive Board and may move freely around the committee hall to discuss the flow or direction of the committee and work together to draft resolutions.

MOTIONS

Motions are the tool for delegates to change the happenings of the committee and require a vote. The vote may be either substantive or procedural. Motions can be raised to move into different formats of debate. Some motions may require a two-thirds majority to pass, while others require a simple majority. Motions must be raised in a certain verbatim in order to be considered.

POINTS:

Points are the tools for delegations to ask questions regarding the committee and its proceedings. Points do not require a vote. There are four different points, and only one of them may interrupt a speaker.

1) **Point of Inquiry:** This point is raised by a delegate when they wish to ask a question regarding the procedure or proceedings of the committee. Points of Inquiry may not interrupt a speaker and are answered by the Executive Board.

2) **Point of Order:** This point is raised by a delegate when they believe the dais has made a procedural error. It may also be raised to point out factual inaccuracies in statements made by other delegates.

3) ***Point of Personal Privilege:*** This point is raised by a delegate to express their personal discomfort. Only this Point can interrupt a speaker. Grievances such as the temperature of the room or the inability to hear a speaker can be brought up using this Point.

4) ***Point of Information:*** This point is raised when a delegate has a question for a speaker during formal debate. Points of Information can be raised in informal debate through chit.

CHITS:

The mode of non-verbal communication used between delegates during formal sessions. Informal chits may be sent to another delegate directly by mentioning the sender and recipient only. Formal chits to be marked upon by the Executive Board may be sent to another delegate via the Executive Board.

RIGHT TO REPLY:

The Executive Board may recognize a Right of Reply raised by a delegate only in instances of grave personal insult. The Executive Board shall inform the Secretariat of the circumstances surrounding the Right of Reply, and rulings on said matter are not subject to appeal.

DRAFT RESOLUTION:

Sponsors are delegates who have contributed to a Working Paper substantively. They are the principal authors of the document and agree with its substance. The first stage of a resolution is a Working Paper. Working Papers consist of solutions in no particular format. Working Papers require sponsors and signatories, and sponsors must submit Working Papers to the Executive Board for feedback. The committee discusses the Working Papers and subsequently moves to creating draft resolutions. Draft Resolutions are improved and edited versions of Working Papers in a particular format. They are assigned numbers

based on the order that they were received in by the dais. If passed during the Voting Procedure, it becomes a Resolution.

SPONSORS: WORKING PAPERS: DRAFT RESOLUTION:

Sponsors are delegates who have contributed to a Working Paper substantively. They are the principal authors of the document and agree with its substance.

SIGNATORIES:

Signatories are delegates who may or may not agree with the substance present in a document but still wish to see it debated and discussed in committee. A certain percentage of the committee must be signatories for a document to be accepted. Signatories may propose amendments for a Draft Resolution.

PREAMBULATORY CLAUSES:

Preambulatory clauses highlight past actions taken regarding an issue and the reason for the addressing of the topic. Each clause begins with a preambulatory phrase, and ends with a comma. Preambulatory Phrases are italicized. These clauses serve to justify solutions proposed in the resolution and do not call upon or take action themselves

OPERATIVE CLAUSES:

Operative Clauses are clauses that call for specific action or propose solutions to the agenda at hand. They are the main substance of a resolution. They are numbered and end with semicolons. Only the last operative clause in a Draft Resolution should end with a period. Subclauses are indicated by a lowercase letter, and sub-sub clauses are indicated by roman numerals.

AMENDMENTS:

If a delegate wishes to improve a Draft Resolution, they may pass an amendment. An addition, deletion, or modification amendment may be passed.

There are two types of amendments. Friendly Amendments are those that are considered friendly by the sponsors, who agree that the amendment should be made to the document without debate. An Unfriendly Amendment is an amendment that is considered unfriendly by even one of the sponsors, as they believe it should not be incorporated into the document. Unfriendly amendments are put to a vote, and if a majority of the committee is in favor of the amendment, it is incorporated into the document despite the disapproval of the Sponsors.

VOTING:

Each present delegate shall have one vote. Observing nations and nongovernmental organizations (NGOs) cannot vote on substantive matters. Each vote may be a Yes, No, or abstain. On procedural motions, members may not abstain. Countries that have answered “Present and Voting” may not abstain in substantive voting. After the Executive Board has announced the commencement of the voting procedure, no representative may enter or leave the room. Communication between delegates is strictly forbidden.

INTRODUCTION TO THE COMMITTEE

The United Nations Human Rights Council (UNHRC) is an intergovernmental body within the United Nations responsible for the promotion and protection of human rights around the globe and addressing the situations of human rights violations and resolving them. It discusses all thematic human rights issues and situations that require its attention throughout the year. It consists of 47 member states who are elected by the United Nations General Assembly for three-year terms on a regional group basis. The council was created by the United Nations General Assembly on 15 March 2006 by resolution 60/251, replacing the former United Nations Commission on Human Rights. It usually holds regular sessions three times a year, in March, June, and September. The Human Rights Council also works with the UN Special procedures established by the former Commission on Human Rights. These are made up of special rapporteurs, special representatives, independent experts and working groups that monitor, examine, advise, and publicly report on thematic issues or human rights situations in specific countries.

MANDATE OF UNITED NATIONS HUMAN RIGHTS COUNCIL

(UNHRC)

The United Nations Human Rights Council's primary role is to protect and promote human rights across the globe. It can make recommendations to the General Assembly and suggestions to the subsidiary UN bodies to improve human rights. The council must respond to human rights emergencies across the globe. It can make recommendations to the member states. The council must enhance international cooperation and engage in dialogue with governments for the promotion and protection of all human rights. The council must provide technical assistance to the member states for human rights activities and coordinate human rights promotion and protection activities throughout the United Nations system. It has the role of developing the International Human Rights Law. Hence, the council should ensure that human rights are promoted and protected. The UNHRC is also mandated to conduct something known as the Universal Periodic Review, where, based on reports all around the world, a comprehensive review of the state of human rights in all 193 states is conducted.

DETAILS ON THE AGENDA

AGENDA: Deliberation on the Responsibilities of States in Safeguarding Prisoners from Cruel, Inhumane, and Degrading Treatment or Punishment, with a Special Emphasis on the Middle East.

Prison cruelty and violation of human rights are the major global concerns of the Human Rights Council, and there are several well-documented cases of abuses in the Middle East. The cases of such abuse include sexual violence, denial of medical care, and physical and psychological torture.

Lawful sanctions

While the definition of torture under the Convention does not include “pain or suffering arising from, inherent in, or incidental to lawful sanctions,” this limitation has been interpreted restrictively. A sanction considered lawful under national law may still constitute torture or other prohibited ill-treatment if it causes physical pain or mental suffering. In this regard, the prohibition against torture and ill-treatment extends to corporal punishment, including “excessive chastisement ordered as punishment for a crime or as an educative or disciplinary measure.” The distinction between torture and other forms of cruel, inhuman, and degrading treatment or punishment Torture is a severe form of cruel, inhuman, or degrading treatment or punishment (referred to collectively as ill-treatment). While Article 16 of the Convention obliges States Parties to prevent ill-treatment, the Convention does not include a definition of cruel, inhuman, and degrading treatment or punishment, and these concepts can be difficult to distinguish. Often, they will involve the same act

STAT

- Enact the governmental laws that criminalize cruelty with CIDTP and penalties. European states should make it mandatory to follow the ***“European Convention for the Prevention of Torture.”***
- Keeping track of criminal records and giving them legal access to healthcare, counseling, and family
- Following the article 16 of the UNCAT (UNITED NATIONS
- Cooperating with other states for mutual information sharing and legal assistance to prevent torture of prisoners

CONVENTION AGAINST TORTURE

To give effective remedies and give full compensation to the victims of torture. Implementation of the optional protocol to UNCAT, which mandates The establishment of National preventive mechanisms and grants the subcommittee on prevention of torture access to all prisons

- Engage in constructive dialogue with CAT and implement its recommendations for further reforms

MORE INFORMATION ON AGENDA

A FEW BASIC PRINCIPLES ARE:

- All prisoners must be treated with respect for their inherent dignity and value as human beings
- There should be no discrimination based on race, gender, religion, or any other status
- Torture and other forms of ill-treatment are absolutely forbidden
- Prisoners should have access to health care, education, and opportunities for personal development

“In Iran, prisoners from the AL-Jed’s subjected to torture and enforced disappearance after arrests.”

This news was from Amnesty International on 29 October 2024

Seven of them faced torture and other ill-treatment. Interviewees said that the torture included severe beatings, electric shocks, being forced into stress positions, and being forcibly submerged in water or having their heads covered with a plastic bag so that air supply was restricted. Family members said they observed obvious effects of torture on their relatives, such as broken fingers and dislocated shoulders.

Many Iraqis have been transferred to the Al-Jed’ah Center from the Al-Hol detention camp in northeast Syria, where tens of thousands are being “arbitrarily detained” as a result of their alleged links to the Islamic State (IS) armed group. Since 2021, an estimated 9,500 people have been returned to Iraq from Al-Hol. The Iraqi authorities are considering scaling up the return of Iraqis in Al-Hol—estimated at more than 18,000

The Iraqi authorities and the UN have agreed that tens of thousands of Iraqis will be returned to Al-Jed’ah Centre from Al-Hol detention camp in northeast Syria in the years ahead. It’s unconscionable that after escaping a decade of the UN and detention, Iraqis return only to face further horrors. Before these practices affect the thousands of people due to be returned to Al-Jed’ah Center,

the Iraqi authorities must take urgent steps to end the use of torture and other ill-treatment.”

CASE IN MIDDLE EAST:

HAMAS AND ISRAEL

Palestinian ex-detainee Mutasim Raddad, who was released and deported as part of a prisoner exchange deal between Hamas and Israel, has died. Raddad suffered from severe chronic intestinal inflammation, high blood pressure, and heart failure. Palestinian human rights groups have reported systematic violations against detainees in Israeli prisons, including deliberate medical neglect, physical and psychological abuse, and denial of necessary treatment. Israel holds approximately 9,900 Palestinians in its prisons, including around 400 children and 29 women. More than 52,700 Palestinians have been killed in Gaza in a brutal Israeli onslaught since October 2023. The International Criminal Court has issued arrest warrants for Israeli Prime Minister Benjamin Netanyahu and his former Defense Minister Yoav Gallant for war crimes and crimes against humanity in Gaza.

As part of the ceasefire agreement between Hamas and Israel, 183 Palestinians were released from Israeli jails. They emerged wearing stained grey prison jumpsuits and exhibiting signs of years of detention.

Many legislative amendments may be necessary to implement all the provisions of the UNCAT, and could include revisions to the following legal texts:

- Constitution,
- penal code,
- criminal procedure code and civil code of procedure,
- police legislation,
- prison legislation,
- extradition legislation, and
- various other laws.



Abbreviations

ACHPR	African Charter on Human and Peoples' Rights
ACHR	American Convention on Human Rights
CAT or Committee	Committee against Torture
CAT or Convention	Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment
ECHR	European Convention for the Protection of Human Rights and Fundamental Freedoms
ECPTDTP	European Convention for the Prevention of Torture and Inhuman and Degrading Treatment or Punishment
IACPPT	Inter-American Convention to Prevent and Punish Torture
ICCPR	International Covenant on Civil and Political Rights
LOIPR	List of Issues Prior to Reporting
NGO	Non-governmental Organisation
NHRI	National Human Rights Institutes
OHCHR	Office of the High Commissioner for Human Rights
OPCAT	Optional Protocol to UNCAT
SPT	Subcommittee on the Prevention of Torture
UDHR	Universal Declaration of Human Rights

IMPORTANT LAWS AND ACTS AGAINST HUMAN CRUELTY

1) **The Universal Declaration of Human Rights (UDHR) (1948)**

Article 5: “No one shall be subjected to torture or to cruel, inhuman, or degrading treatment or punishment.”

2) **The International Covenant on Civil and Political Rights (ICCPR) (1976)**

Article 7: “No one shall be subjected to torture or to cruel, inhuman, or degrading treatment or punishment.”

3) **The Convention against Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment (CAT and hereafter the Convention) (1987).**

Similarly, several regional treaties and instruments reaffirm the prohibition against torture and other forms of ill-treatment:

4) **The European Convention for the Protection of Human Rights and Fundamental Freedoms (ECHR) (1953)**

Article 3: “No one shall be subjected to torture or to inhuman or degrading treatment or punishment.”

5) **The American Convention on Human Rights (ACHR) (1978)**

Article 5: “No one shall be subjected to torture or to cruel, inhuman, or degrading punishment or treatment. All persons deprived of their liberty shall be treated with respect for the inherent dignity of the human person.”

The African Charter on Human and Peoples' Rights (ACHPR) (1986)

6) Article 5: “Every individual shall have the right to the respect of the dignity inherent in a human being and to the recognition of his legal status. All forms of exploitation and degradation of man, particularly slavery, slave trade, torture, and cruel, inhuman, or degrading punishment and treatment, shall be prohibited.”

7) **The Inter-American Convention to Prevent and Punish Torture (IACPPT) (1987).**

8) The European Convention for the Prevention of Torture and Inhuman and Degrading Treatment or Punishment (ECPTIDTP) (1989).

Examples of issues considered by the Committee in practice regarding the prevention of torture and ill-treatment (Articles 2 and 16)

- The use of prolonged solitary confinement.
- The use of incommunicado detention.
- The length of police custody or pre-trial detention.
- Poor conditions of detention, including the lack of basic amenities and services, appropriate medical attention, poor hygiene, violence and sexual abuse.
- Corporal punishment.
- Excessive use of force by law enforcement officials.
- Acts committed by public officials by acquiescence, including violence by private parties, such as corporal punishment in the family and private schools, domestic violence, human trafficking, hate crimes, female genital mutilation, inter-prisoner violence in detention.
- Misuse of psychiatric hospitalisations.
- Women in detention.
- Juveniles in detention.
- Deaths in custody.
- Enforced disappearances.

ADDITIONAL RESOURCES

.)<https://redress.org/wp-content/uploads/2018/10/REDRESS-Guide-to-UNCAT-2018.pdf>

.)<https://www.hrw.org/news/2021/07/11/saudi-arabia-new-details-alleged-torture-leaked>

.)<https://www.amnesty.org/en/latest/news/2023/11/israel-opt-horrifying-cases-of-torture-and-degrading-treatment-of-palestinian-detainees-amid-spike-in-arbitrary-arrests>

.)<https://www.bbc.com/news/articles/cy4784vn4jdo>

.)<https://www.ohchr.org/en/instruments-mechanisms/instruments/convention-against-torture-and-other-cruel-inhuman-or-degrading>